

SOTOMAYOR, J., dissenting

prohibit the evidentiary use of speech,” including its use “to prove motive or intent.” *Wisconsin v. Mitchell*, 508 U. S. 476, 489 (1993). Evidentiary rulings and limiting instructions can ensure that evidence concerning official acts is “considered only for the proper purpose for which it was admitted.” *Huddleston v. United States*, 485 U. S. 681, 691–692 (1988). The majority has no coherent explanation as to why these protections that are sufficient in every other context would be insufficient here. It simply asserts that it would be “untenable” and would deprive immunity of its “‘intended effect.’” *Ante*, at 631 (quoting *Fitzgerald*, 457 U. S., at 756). The majority hazards an explanation that the use of official-acts evidence will “raise a unique risk that the jurors’ deliberations will be prejudiced by their views of the President’s policies and performance while in office.” *Ante*, at 631. That “unique risk,” however, is not a product of introducing official-acts evidence. It is simply the risk involved in any suit against a former President, including the private-acts prosecutions the majority says it would allow.

VII

Today’s decision to grant former Presidents immunity for their official acts is deeply wrong. As troubling as this criminal immunity doctrine is in theory, the majority’s application of the doctrine to the indictment in this case is perhaps even more troubling. In the hands of the majority, this new official-acts immunity operates as a one-way ratchet.

First, the majority declares all of the conduct involving the Justice Department and the Vice President to be official conduct, see *ante*, at 619–625, yet it refuses to designate any course of conduct alleged in the indictment as private, despite concessions from Trump’s counsel.⁶ Trump’s counsel

⁶The majority protests that it is “adher[ing] to time-tested practices” by “deciding what is required to dispose of this case and remanding” to lower courts to sort out the details. *Ante*, at 641. Yet it implicitly acknowledges that it reaches far beyond what any lower court considered or